

25VECV06794 25VECV06794

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C08%2F06%2F2026

Source SHA-256: bf191d4fa182ae62238e0ece05c16cce6722603718bdc6b897aa252420b24225

Case Number: 25VECV06794 Hearing Date: August 6, 2026 Dept: I

25VECV06794

CESARIA GAMBOA vs BURLINGTON, et al.

August 6, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motions to Compel

Responses

I.

Background

On November

5, 2025, Plaintiff Cesaria Gamboa (“Plaintiff”) filed a complaint against Burlington located at 7866 Van Nuys Blvd., Van Nuys, CA 91402 and Burlington Stores, Inc. (“Defendants”) alleging two causes of action: (1) premises liability; and (2) general negligence.

On May

22, 2026, Defendants filed the instant motions to compel Plaintiff’s responses to Request for Special Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One. Defendants also request sanctions.

On July

24, 2026, Plaintiff’s counsel filed a declaration in opposition.

On July

30, 2026, Defendants filed their reply.

II. Motions

to Compel Responses

Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Cal. Code Civ. Proc. § 2030.290(b).) The statute does not contain a time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

Where there has been no timely response to interrogatories, the demanding party may seek an order compelling a response. (CCP § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (CCP § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the interrogatories. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

Request for Production of Documents

Any party may obtain discovery by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action. (CCP § 2031.010(a).) If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response, the demanding party may move for an order compelling response to the demand. (CCP § 2031.300(b).) Failure to timely respond waives any objection to the demand. (CCP § 2031.300(a).)

Discussion

Defendants served their discovery responses on Plaintiff on March 27, 2026. (Porrón Decl. at ¶ 5; Exhs. A-C.) As of the date of this

motion, Plaintiff had yet to serve responses. (Id. at ¶ 8.)

In opposition, Plaintiff's counsel declares that, on July 24, 2026, Plaintiff served his discovery responses. (Hanassab Decl. at ¶ 11; Exh. A [responses].) In reply, Defendants argue that, due to the delay, this Court should grant monetary sanctions and deem Plaintiff's objections waived and require objection free responses.

The Court agrees. Plaintiff is to serve Defendants with verified, code-compliant, objection-free responses.

Additionally, Defendants request sanctions in the total amount of \$5,158.00 for all three motions, representing 9.5 hours of work at an hourly rate of \$508.00 and \$180.00 in filing fees. (Perron Decl. at ¶ 10.) Considering the simplicity of the motions, the Court finds this amount unreasonable and reduces sanctions to \$3,000.00.

III.

Conclusion

Based on the foregoing, Defendants' motions to compel Plaintiff's responses are GRANTED.

Plaintiff is ordered to serve Defendants with substantive, verified, and code-compliant responses to Defendants' Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One, within 20 days of this order. Additionally, Plaintiff and Plaintiff's counsel, jointly and severally, are to pay defense counsel sanctions in the amount of \$3,000.00 within 20 days of this order.

Moving party to give notice.